

**SUBSTITUTE FOR
HOUSE BILL NO. 5767**

A bill to amend 2006 PA 384, entitled
"Driver education provider and instructor act,"
(MCL 256.621 to 256.705) by adding section 40.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 40. (1) Beginning January 1, 2028, in addition to the**
2 **requirements in sections 37 and 39, all participants in a driver**
3 **education course must complete a work zone safety education course**
4 **that is approved by the department of state and meets the following**
5 **requirements:**

6 **(a) The department of state has consulted with the state**
7 **transportation department about the content of the work zone safety**
8 **education course.**

9 **(b) The work zone safety education course consists of not less**



1 than 30 minutes of education delivered through either of the
2 following formats:

3 (i) An online format approved by the department of state.

4 (ii) In-person instruction as part of a driver education course
5 under this act.

6 (c) The work zone safety education course must include, but is
7 not limited to, the following topics:

8 (i) Instruction on identifying and navigating highway
9 construction and maintenance zones.

10 (ii) Education on the safety precautions necessary to protect
11 both drivers and workers in work zones.

12 (iii) Information on the legal requirements and penalties
13 associated with traffic violations in work zones.

14 (iv) Strategies for safe driving behavior in the presence of
15 construction equipment and personnel.

16 (2) Successful completion of the work zone safety education
17 course described in subsection (1) must be documented and submitted
18 to the department of state, in a form and manner as prescribed by
19 the department of state, prior to the issuance of the applicant's
20 level 2 graduated driver license.

21 (3) The department of state shall adopt a standardized
22 curriculum for the work zone safety education course and ensure it
23 is consistent across all delivery methods. The department of state
24 may approve and utilize existing driver education curriculum
25 materials, including, but not limited to, AAA driver education
26 curriculum, if the curriculum is determined appropriate by the
27 department and meets the requirements of this section.

28 (4) The department of state may collaborate with the state
29 transportation department, law enforcement agencies, and other



1 stakeholders to update and enhance the course content regularly.

2 (5) The work zone safety education course must be provided to
3 participants in a driver education course at no additional cost to
4 the participant.

5 Enacting section 1. This amendatory act does not take effect
6 unless House Bill No. 5768 of the 103rd Legislature is enacted into
7 law.